PWC is a registered 501c3 non-profit organization

~~Revised September 1, 2023~~
Revised June 28, 2024

Mission Statement:

The Petaluma Wrestling Club is committed to the character development of young people through the sport of wrestling. PWC is more than a club - it is a cohesive community. With dedicated coaches, supportive parents and committed family involvement, we will strive to instill joy for the sport of wrestling in all of our athletes.

Goals and Objectives:

- Instruct in proper fundamentals and safe wrestling techniques
- Help develop a strong competitive spirit while fostering and maintaining the highest levels of good sportsmanship
- Promote and develop a strong team concept
- Promote the values of hard work, ethical competition, friendship, respect for team and opponents and high academic standards
- Compete in various local, regional, state and national competitions as the coaches deem appropriate
- Have fun

PWC BY-LAWS

PETALUMA WRESTLING CLUB

CONSTITUTION AND BYLAWS

A California Nonprofit Public Benefit Corporation

ARTICLE I

NAME

The name of this corporation is PETALUMA WRESTLING CLUB (Herein “PWC.”)

ARTICLE II

OFFICES

Section 1. Registered Office. PWC shall at all times maintain in the State of California a registered agent, whose business office shall be the registered office of PWC. The Board of Directors (the “Board” or “Directors”), with a (2/3) two-thirds of a present quorum vote, may at any time change the location of the principal office or establish branch or subordinate offices at any place or places where this corporation is qualified to conduct its activities.

ARTICLE III

PURPOSES

Section 1. Nature of Corporation. PWC is a nonprofit corporation formed under the laws of California and which is organized and shall be operated in accordance with the meaning and provisions of Section 501(c) (3) of the Internal Revenue Code and the regulations issued thereunder. Unless the context requires otherwise, the general provisions, rules of construction and definitions in the California Nonprofit Corporation Law shall govern the construction of these Bylaws.

Section 2. Primary Purposes. The Petaluma Wrestling Club is committed to the character development of young people through the sport of wrestling. PWC is more than a club, it is a cohesive community. With dedicated coaches, supportive parents, and committed family involvement we will strive to instill joy for the sport of wrestling in all of our athletes.

ARTICLE IV

MEMBERSHIP

Section 1. Membership. Its Board of Directors, officers, executive committee and board committees shall conduct the management and activities of PWC. This corporation shall have no voting members within the meaning of Nonprofit Corporation Law. The corporation's Board of Directors may, in its discretion, admit individuals to one or more classes of non voting members; the class or classes shall have such rights and obligations as the Board finds appropriate by a majority of a present quorum vote.

ARTICLE V

BOARD OF DIRECTORS

Section 1. General Powers. The Board of Directors shall have the general power to manage and control the affairs and property of PWC and shall have full power, by majority vote, to adopt rules and regulations governing the actions of the Board of Directors.

Section 2. Qualifications of a Director. To qualify for nomination and election as a Director on the Board of Directors, a person must be of legal age (18 or older) and must be a resident of the State of California. To be eligible and qualify for re-election, a Director must be in Good Standing. "Good Standing" includes meeting the above criteria, and not having a combination of (3) three or more absences in the (12) twelve months prior to the date of Election.

Section 3. Number, Election, and Term of Office. (A) Number. The Board of Directors. Shall consist of no less than five (5)and no more than eleven (11) members. The Board may set the authorized number of Directors within this parameter; however, the reduction of the authorized number of Directors shall not result in any Director being removed before their term of office expires.

(B) Election, Election to the Board of Directors shall be by majority vote of the members of the Board of Directors, which shall occur, except in the case of filling vacancies, at each Annual Meeting thereof.

(C) Term. If elected at the Annual Meeting, each elected Director shall hold office for a term of (2) two years commencing July 1st until (twenty-four 24 months) June 30 when the new Board of Directors are seated. Upon expiration of the (2) two year term, each Director in good standing will automatically be included in the state of Directors for re-election as a Director for a (2) two year, unless the Director notifies the President or the Nomination Committee in writing of their intent not to run for re-election, and allow their term to expire. Any re-elected Director will continue serving without interruption of service on the Board.

Notification of Nominees to the President should be no less than (60) sixty days prior to the Annual Meeting; however, any Director running for re-election may withdraw his nomination at any time prior to the election. A Director running for re-election at the Annual Meeting must be re-elected by a majority of a present quorum vote of the members of the Board of Directors.

Section 4. Officers. The Board of Directors shall elect from among its board members a President, Vice-President, Recording Secretary, Treasurer, and other officers, as the Board may consider appropriate with such duties as it may prescribe. The election of Officers shall be held at the Annual Meeting of the Board of Directors.

Section 5. Duties & Responsibilities. The Directors shall meet once a month for a regular board meeting and an annual meeting, and such other special meetings that may be called from time to time. As Directors and Officers of PWC Club each have fiscal and fiduciary duties and responsibilities to PWC. In accordance with the provisions of PWC's Articles of Incorporation and Bylaws; Article 3 of the Corporations Code (commencing with section 5230); and as otherwise required by law. Directors may belong to other organizations or board of directors, however, the Director's loyalty, preference and responsibility should be first to PWC and the Director must disclose membership in any organization or board that is similar to PWC or which may conflict with the PWC or duties and responsibilities of the Director. A Director should abstain in voting on any matters that involve a potential conflict of interest for said Director who has membership or other interest in the matter. A breach of a Director or Officer's fiscal or fiduciary duties may subject him/her to liability and/or removal from the Board. Every Board Member agrees to PWC's "Confidentiality and Conflict of Interest Policy."

Section 6. Indemnification and Insurance. (A) Indemnification. To the fullest extent permitted by law PWC shall Indemnify its directors, officers, employees, and other persons described in Section 5238(a) of the California Corporations Code, including persons formally occupying such position, against all expenses, judgments, fines, settlements and other amounts actually and reasonably incurred by them in connection with any "proceeding," as the term is used in that section, and including an action by or in the right of the Corporation, by reason of the fact that the person is or was a person described in that section. "Expenses," as used herein, shall have the same meaning as in Sections 5238(a) of the California Corporation Code.

(B) On written request to the Board by any person seeking indemnification under section 5238(b) or Section5238(c) of the California Corporations Code, the board shall promptly determine under Section 5238(e) whether the applicable standard of conduct set forth in Section 5238(b) or 5238(c) has been met and, if so, the Board shall authorize indemnification. If the Board cannot authorize indemnification, because the number of directors who are parties to the proceedings with respect to which indemnification is sought prevents the formation of a quorum of directors who are not parties to that proceeding, then the court in which such proceeding is or was pending will authorize indemnification upon proper application.

(C) To the fullest extent permitted by law and except as otherwise determined by the Board in a specific instance, expenses incurred by a person seeking indemnification under these bylaws in defending any proceeding covered by those sections shall be advanced by the Corporation before final disposition of the proceeding, on receipt by the Corporation of an undertaking by or on behalf of that person that the advance will be repaid unless it is ultimately determined that the person is entitled to be indemnified by the Corporation for those expenses.

(D) Insurance. PWC shall have the right, and shall use its best efforts, to purchase and maintain Insurance to the full extent permitted by law on behalf of its officers, directors, employees, volunteers, and other agents, against any liability asserted against or incurred by any officer, director, employee, volunteer, or agent, in such capacity or arising out of the officer's, director's, employee's, volunteer's or agent's status relating to PWC.

Section 7. Vacancies. Any vacancy occurring on the Board of Directors prior to the expiration of a term may be filled by such person as shall be elected by majority vote of the remaining members of the Board of Directors at any board meeting. A Director so

elected to fill a vacancy shall hold office for the unexpired term of their predecessor in office.

Section 8. Regular and Annual Meetings. (A) Regular Meetings shall be held every month. The President shall prescribe the time and place of such regular meetings.

(B) Annual Meeting. The Board of Directors shall hold an annual meeting ("Annual Meeting") each year at such time and place, as the Board of Directors shall by resolution prescribe. The Annual Meeting shall include the election of Directors and Officers.

(C) Attendance by the General Public. Regular and Annual Meetings are not open to the general public. However, the Board may designate a limited time at each Board meeting or at select Board meetings for comments from the general public or may invite potential new board members or other members of the general public as guests. However, individual Directors may not invite guests without prior notification to the full Board at least (2) two business days in advance of the meeting and provide specific notice to the President in order to allow for inclusion on the agenda for said meeting. Any Director may object to the individual attending the meeting as a guest and so inform the Board. The Board may request information or a written statement of intent from the potential guest for its review prior to making a decision. A guest that is denied from attending a Board meeting based on the vote of the Board may appeal the decision by petitioning, in writing, for a new vote by the full Board of Directors. Any person who makes any physical threat toward a Board member shall automatically be excluded from attending a Board meeting.

Section 9. Special Meetings. Special meetings ("Special Meetings") of the Board of Directors may be called by or at the request of the President or any two Directors in good standing. The person or persons authorized to call Special Meetings of the Board of Directors may set any reasonable date, hour, and location, and as required by laws of California. No business, other than the business that was set forth in the Notice of the Special Meeting, may be transacted at a Special Meeting. Special Meetings are not open to the general public, however, guests may be invited to attend all or part of a Special Meeting if approved as set forth above in the "Attendance by the General Public" section. Advance notice of at least (24) twenty-four hours must be provided to the Board of the approved guest's name, title, and short description of person and purpose of attendance. At the Special Meeting the Board may vote to accept, deny or limit the attendance of a guest(s) by a (2/3) two-thirds of a present quorum vote of the Directors in attendance.

Section 10. Notice. (A) Notice of Annual Meetings of the Board of Directors shall be given at least (30) thirty calendar days. If the Annual Meeting is held concurrently with the regular Meeting, a second reminder Notice shall be given to Board members not be less than (48) forty-eight hours previous thereto, in a manner as set forth herein below. The business to be transacted at, and the purpose of, any Annual Meeting of the Board of Directors need not be specified in the (30) thirty day notice of such meeting, only the general nature of the business, except that the notice shall include the state of names of all persons who are nominees for Election when the (30) thirty day notice is given.

(B) Notice of Regular Meetings Is deemed given if held on the regularly scheduled date and time. If the date, time or place of a regular meeting is changed, notice is deemed given if provided at the previous Board meeting or if given at least (48) forty-eight hours previously to the new scheduled date, time or place.

(C) Notice of Special Meetings of the Board of Directors shall be given (48) forty-eight hours previously thereto, unless there are extenuating circumstances in which such notice is not practical due to an emergency or other urgent matter requiring immediate attention. For a Special Meeting, the notice shall state the general nature of the business to be transacted, except if a board member is going to be removed the name of any board member subject to vote of removal shall be specifically named, and the notice shall state whether other business may be transacted.

(D) Delivery of Notice. Notices shall be effective if delivered either personally, in writing or by phone (telephone or cell phone) as set forth herein below. Written notice may be delivered personally or sent by mail, facsimile, e-mail or other means of electronic transmission to each Director at their address (or e-mail address) as shown in the records of the PWC. If mailed, such notice shall be deemed to be delivered (2) two business days after the postmark when deposited in the United States mail in a sealed envelope so addressed, with postage prepaid. Notice delivered by phone shall be deemed delivered if the person answers the call or if a detailed voicemail message with date, time and place of the meeting is left at the Director's contact phone number shown in the records of the PWC at least (48) forty-eight hours in advance of the meeting for which notice is being given.

Any Director may waive notice of any meeting. The attendance of a Director at any meeting shall constitute a waiver of notice of such meeting, except where a Director attends a meeting for the express purpose of objecting to the transaction of any business because the meeting is not lawfully called or convened and makes their objection known.

(E) Notice of Affidavit. An affidavit of the mailing or other means of notice given to Directors for any Special Meeting or the Annual Meeting shall be executed by the secretary or other authorized Director (including a member of the nomination committee), and if so executed, shall be filed and maintained in the corporation's minute book.

(F) Adjourned Meeting. Notice of the time and place of holding a meeting that is adjourned need not be given unless the original meeting is adjourned for more than 48 hours, except notice of the adjournment shall be given to any Directors not in attendance when the adjournment was announced. If the original meeting is adjourned for more than 48 hours, notice of any adjournment shall be sent to all Directors.

Section 11. Quorum, Proxies and Attendance. (A) Quorum. A majority of the total number of Directors in office shall constitute a quorum for the transaction of business at any meeting of the Board of Directors; but, if less than majority of the Directors are present at said meeting, a majority of the Directors present may adjourn the meeting from time to time without further notice.

(B) Proxies. Proxies shall not be permitted.

(C) Attendance. Any board meeting may be held in person, by conference telephone, video screen communication, or other communications equipment. Participation by a Director shall constitute presence in person at the meeting if both the following apply:

(1) Each Director participating in the meeting can hear the proceedings and can communicate concurrently with all other member, and

(2) Each Director is provided the means of participating in all matters before the board, including the capacity to propose, or to interpose an objection to, a specific action being taken by the corporation.

Section 12. Manner of Acting. The act of a majority of the Directors present at a meeting at which a quorum is present shall be the act of the Board of Directors, unless the act of a greater number is required by law or by these Bylaws.

Section 13. No Compensation. Directors as such shall not receive any stated salaries or other compensation for their services as Officers, Directors, Committee

Chairs or Committee members but may be reimbursed for reasonable expenses. Nothing herein shall be construed to preclude any Director from serving the PWC in any other capacity and receiving compensation therefore so long as the compensation is disclosed to the Board of Directors prior to the payment of said compensation and it is approved by a majority of a present quorum vote of the Board.

Section 14. Informal Action. Any action may be taken without a meeting of the Directors if consent in writing, setting forth the action so taken, shall be signed and authorized by all of the Directors, which may be executed in writing by fax, e-mail or other electronic transmission. The Recording Secretary shall file with the corporate records or make a part of the minutes, all waivers, consents, or approvals.

Section 15. Absences. (A) A Board Member failing to attend a regularly scheduled Board meeting and/or Annual meeting shall constitute an absence (attendance is defined in Section 11 above). Four (4) absences by a Board member within a (12) twelve month period or Three (3) consecutive absences by a Board member within a (12) month period may subject a Director from removal from the Board, upon a (2/3) two-thirds of a present quorum vote of the Board.

(B) Re-Election. Absences affect a Director's Good Standing and ability to be re-elected. A Director must be in "Good Standing" as defined above which includes not having (3) three or more absences in the (12) twelve months prior to the date of Election.

Section 16. Resignation; Removal. (A) A Director may resign from the Board of Directors at any time by giving notice of their resignation in writing addressed to the President or Corresponding Secretary of the PWC or by presenting their written resignation at an annual, regular, or special meeting of the Board of Directors.

(B) Except as otherwise provided by law, a Director may be removed at any regularly scheduled meeting where customary and reasonable notice has been provided to the Directors that removal of said Director is on the agenda or at any special meeting of the Board of Directors called expressly for that purpose. Any director may be removed, with cause, by the vote of (2/3) two-thirds of a present quorum of the Directors then in office. Cause for removal includes excessive absences as set forth herein, the Director no longer meets the qualifications to serve as a Director on the Board, the Director has been declared of unsound mind by a final order of the court, has been convicted of a felony, has been found by a final order or judgment of any court to have breached any

duty under Article (3) three of the Corporations code (commencing with section 5230), or as otherwise allowed by law. A Director may be removed without cause by a unanimous vote of the Board of Directors (excluding the Director being voted upon). Any Director removed as a Director from the Board for any reason makes that person ineligible as a Director with PWC for a period of at least (2) two years from the effective date of the removal from the Board.

Section 17. Vacancy or Addition of a Director. The Board may vote in a new Director to the Board of Directors, by a (2/3) two-thirds vote of the Board of Directors present at any special or regularly scheduled meeting, to fill the vacancy caused by a Director who has been removed from the Board of Directors within (30) thirty days, or by a majority of a present quorum vote to fill a vacancy caused by a Director who has resigned or to add another Director to the Board of Directors. The term of the new Director shall be for the unexpired portion of the term of previous Director who caused the vacancy or shall expire as of the date of the next Election of Board Directors for an additional Director. Any Director in Good Standing may submit a timely nomination for a new Director to the President. The nomination, to be timely, shall be sent to the President and Secretary at least (24) twenty-four hours prior to the notice period for the meeting, wherein the name of the nominee shall be included in the notice of the regular or special meeting in which the nominee shall be voted upon. No nominations shall be made (on the floor) at a special or regular meeting due to lack of notice to Directors not in attendance.

ARTICLE VI

OFFICERS

Section 1. Officers. The Officers of the PWC shall be a President, Vice President, Recording Secretary, Treasurer, and such other Officers as may be elected in accordance with the provisions of this Article. The same person may hold not more than one office simultaneously.

Section 2. Election and Term of Office. The Officers of the PWC shall be elected by a majority of a present quorum vote of the members of the Board of Directors at the organizational meeting and at every Annual Meeting of the Board thereafter, except that new offices may be created and filled at any meeting of the Board of Directors. Each

Officer shall hold office for a term of (2) two years and thereafter until their successor shall have been duly elected and qualified for office.

Section 3. Removal. Any Officer may be removed upon an affirmative vote equal to (2/3) two-thirds of a present quorum of the entire Board of Directors, whenever in its judgment the best interests of the PWC would be served thereby. Removal as an Officer will also remove the person as a Director, if the vote for removal so states and the removal was for "cause" as defined herein. Any Director removed as an Officer makes that person ineligible as an Officer of at least (2) two years.

Section 4. Vacancies. A vacancy in any office because of death, resignation, removal, disqualification or otherwise, may be filled by the Board of Directors for the unexpired portion of the term, by a (2/3) two-thirds of a present quorum vote of the Board of Directors present at any special or regularly scheduled meeting.

Section 5. President. The President shall preside over all meetings of the PWC. The President shall be the chief executive officer of the PWC and, in general, shall supervise and control all of the business and affairs of the PWC. The President shall further perform all duties incident to the office and advise such action as may be deemed by him/her likely to increase the usefulness of the committees. The President shall direct the official correspondence, oversee and ensure the preservation of all books, documents, minutes, and communications. He/she shall further ensure that all books of account, financial records, contracts, minutes and other official documents are properly maintained and at the expiration of their term shall deliver all such records to the Board, including, but not limited to, all original documents.

The President may sign, with any other Officer of the PWC authorized by the Board of Directors, any deeds, mortgages, bonds, contracts, or other instruments or documents which the Board of Directors has authorized to be executed; and he/she shall perform all such other duties as may be prescribed by the Board of Directors from time to time.

Section 6. Vice President. The Vice-President shall act in the absence of the President. In the event of the death, resignation or removal of the President, the person who serves as Vice-President shall assume the office of President until the Board of Directors elects a successor to the President and shall perform all such other duties as may be prescribed by the President or the Board of Directors from time to time.

Section 7. Recording Secretary. The Recording Secretary shall keep accurate minutes of the meetings of the Board of Directors; see that all notices are duly given in accordance with the provisions of the Bylaws and as required by law; be custodian of the corporate records and seal; and perform such other duties as from time to time may be assigned to him/her by the President or by the Board of Directors.

Section 8. Treasurer. The Treasurer shall be responsible for all funds and securities of the PWC; receive and give receipts for monies due and payable to the PWC and deposit all such monies in the name of the PWC in such banks, trust companies or other depositories as shall be selected in accordance with the provisions of the Bylaws; and perform such other duties as may be assigned to him/her by the President or by the Board of Directors. The Board of Directors shall bond the Treasurer for the faithful discharge of their duties in such sum and with such surety or sureties, as the Board of Directors shall determine. The Treasurer shall also be responsible to prepare a written monthly reconciled financial report and shall provide the monthly report to the Board at each regular Board meeting and a written annual report at the Annual Meeting.

ARTICLE VII

REGULAR COMMITTEES

Section 1. Purposes. The Board of Directors may establish such regular Board committees to assist it in the performance of its duties, as it considers appropriate. A committee exercising the authority of the board shall not include as a member persons who are not Directors. However, the Board may create other committees that do not exercise the authority of the Board and these other committees may include persons regardless of whether they are Directors. [For example: the student committee and the advisory committee may include or be comprised of non Board members.]

Section 2. Number, Election, and Term of Office. (A) Number. The number of Board members of each regular committee shall be determined by the Board of Directors, however each committee shall contain no less than (2) two Directors.

(B) Election. Members of each regular committee shall be elected by the affirmative vote of (2/3) two-thirds of a present quorum of the Board of Directors.

(C) Term. Members of each regular committee shall serve concurrent with their Director term or until resignation or removal by the affirmative vote of (2/3) two-thirds of a present quorum of the Board of Directors.

(D) Removal. A Director may be removed from a committee for cause due to: excessive absenteeism at committee meetings based upon the Director absenteeism policy of (3) three or more absences; or the Director fails to act in the best interest of the corporation and/or the committee; or the Director is believed to have breached a fiduciary duty or fiscal responsibility. Removal of a Director by the Board from a committee will not automatically remove the Director from the Board of Directors. A separate vote by the Board is required for the removal of a Director from the Board of Directors. However, a Director that is removed from the Board of Directors is automatically removed from any committees in which the Director was a member or chairperson. Any Director being removed from a committee makes that person ineligible for said committee for a period of at least (1) one year.

Section 3. Officers. The President shall designate from among the members of each regular committee a Chairperson and Vice Chairperson of such committee, and such officers as the President may determine. The Chairperson, Vice Chairperson, and any other officers of each such committee shall have such duties as the President prescribes.

Section 4. Committee Vacancies. The Board, by a (2/3) two-thirds of a present quorum vote, shall fill vacancies in the membership of any committee. Committee Chairpersons may recommend board members to the Board to fill any vacancies on their committee.

Section 5. Quorum. Unless otherwise provided in the resolution of the Board of Directors designating a committee, a majority of the whole committee shall constitute a quorum and the act of a majority of the members present at the meeting at which a quorum is present shall be the act of the committee.

Section 6. Rules. Each committee may adopt rules for its own government not inconsistent with the Bylaws or with rules adopted by the Board of Directors.

Section 7. Powers. Each regular committee shall have such powers as the Board of Directors may grant it consistent with the law, the Articles of Incorporation, and the Bylaws. The Chairperson may recommend to the Board the number of members for the

Committee. The following Board powers may NOT be delegated to committees of the board: filling vacancies on the Board or on a committee of the Board; fixing the compensation of Board or committee members, adopting, amending, or repealing bylaws, amending or repealing any full Board resolution; appointing committees of the Board or members of such committees, expending corporate funds to support a nominee for Director [excluding Nomination Committee expenses relating to the mailing of nomination or election documentation for all nominees]; or approving self-dealing transactions from assets held in charitable trust.

Section 8. Absences. Any Board member who misses (3) three regular committee meetings within a (12) twelve month period shall be automatically dismissed from said committee. Any other member who misses (3) three or more regular committee meetings within a (12) twelve month period may be dismissed from said committee.

ARTICLE VIII

ADVISORY COMMITTEE

Section 1. Purpose. The Board of Directors may establish (or eliminate) an Advisory Board and such other advisory committees, as it considers appropriate with a (2/3) two-thirds of a present quorum vote of the Board. The purpose of all such committees shall be to advise the Board of Directors on such matters relating to PWC and as the Board of Directors designates.

Section 2. Number, Election, and Term of Office. The number of each advisory committee shall be as determined by the Board of Directors. Members of each advisory committee shall be elected by the affirmative vote of a majority of the Board of Directors and shall serve until resignation or removal by the affirmative vote of a majority of the Board of Directors. Removal from an advisory committee does not require cause, only a majority vote.

Section 3. Powers. The members of any advisory committee shall have no voting power. However, each advisory committee shall have the power to advise the Board of Directors and such other powers as the Board of Directors may grant it consistent with law, the Articles of Incorporation, and the Bylaws.

Section 4. Duties & Responsibilities. The Advisory Board and other advisory committees, if any, shall meet once a month each year and report to the Board of Directors, as determined by the Board.

ARTICLE IX

CONTRACTS, CHECKS, DEPOSITS AND FUNDS

Section 1. Contracts. The Board of Directors may, by a (2/3) two-thirds of a present quorum vote authorize any Officer of Officers, agent or agents of PWC in addition to or in place of the Officers so authorized by the Bylaws, to enter into a contract or execute and deliver any instrument or document in the name and on behalf of PWC and such authority may be general or confined to specific instances.

Section 2. Checks, Drafts, and Similar Documents. All checks, drafts or orders for the payment of money, notes or other evidence of indebtedness issued in the name of PWC for over $1,000 shall be signed by the Treasurer and at least one other authorized signatory in Good Standing of the PWC. Authorized signatories are: Club Director, President, Vice-President, Treasurer, or other Officer as authorized by a (2/3) two-thirds of a present quorum vote of the Board of Directors.

All checks, drafts or orders for the payment of money, notes or other evidences of indebtedness issued in the name of PWC for **under** $1000 can be signed by the Club DIrector or President.

Section 3. Deposits. All funds of the PWC shall be deposited from time to time to the credit of PWC in such banks, trust companies or other depositories as the Board of Directors may select.

Section 4. Gifts and Contributions. The Board of Directors may accept on behalf of PWC any contribution gift, bequest, or devise for the general purposes or for any special purpose of the PWC Such contributions, gifts, bequests, or device shall be in conformity with the laws of the United States, the State of California, and any other relevant jurisdiction.

SECTION 5. Travel Expenses For PWC Wrestling Leaders: PWC encourages an annual tournament schedule which provides the opportunity for its athletes to test themselves against high level competition. Examples of such tournaments include the California State USAW Events, USAW regional and national events, and other elite tournaments including the Reno Worlds. To encourage at least one wrestling leader to attend an out of area tournament, PWC authorizes a reasonable amount of lodging and mileage reimbursement. Annually, the Director will present a travel reimbursement plan which will include a general estimate of the number of tournaments that will require out of area travel, the rates for reimbursement for lodging, and the rates for mileage in the upcoming fiscal year, The Board understands that scheduling during the year is fluid and changes to the tournament schedule will be necessary. Whenever changes occur, they must be approved by the Board at a monthly or special meeting.

ARTICLE X

BOOKS AND RECORDS

Section 1. Articles/Bylaws. (PWC shall keep at its principal office the original or a copy of the articles of Incorporation and bylaws, as amended to the current date, which shall be open to inspection by the Directors at all reasonable times during office hours. If the corporation has no business office in California, the Recording Secretary shall, on the written request of any Director, furnish to that Director a copy of the Articles of Incorporation and bylaws, as amended to the current date.

Section 2. Books and Records. PWC shall keep the following:

1. Correct and complete books and records of account;
2. Minutes of the proceedings of its Board of Directors;
3. Minutes of the proceedings of its committees having any of the authority of the Board of Directors;
4. A record of each Director's name, address, and offices/titles held.

Section 3. Distribution. The Recording Secretary shall take, distribute and formalize the minutes for all annual, regular and special meetings to the Directors. Minutes shall be sent to the Directors by e-mail, or other authorized electronic means, in order to reduce the cost of mailing and postage, and should be sent at least (24) twenty-four hours before the meeting.

Section 4. Inspection Rights. On written demand on the corporation, with at least (10) ten business days notice, every Director shall have the right to inspect, copy, and make extracts of the accounting books, corporations books, records, documents of every kind, and the minutes of proceedings of Board meetings and committee meetings at any reasonable time for a purpose reasonably related to the Director's interest as a Director. Any such inspection and copying may be made in person, or by the Director's agent or attorney, and at the Director's own expense.

Section 5. Annual Minute Binder. By the commencement of the subsequent year, the minutes of all meetings for the prior year shall be formalized and placed in a binder (or in any other form capable of being printed) or both, for inclusion with the PWC's official records.

Section 6. Annual Report. The Board shall review an annual report to be sent out to all the Directors (outgoing and newly elected) within sixty-ninety (60-90)days after the end of the corporation's fiscal year or (5) five business days before the June meeting, whichever is later. The report shall contain the following information, in appropriate detail:

1. The assets and liabilities, including trust funds, if any, of the corporation as of the end of the fiscal year;
2. The principal changes in assets and liabilities, including trust funds, if any;
3. The corporation's revenue or receipts, both unrestricted and restricted to particular purposes;
4. The corporation's expenses or disbursements for both general and restricted purposes; and
5. Any other information required by these bylaws.

ARTICLE XI

FISCAL YEAR

The fiscal year of the PWC shall begin on the first day of July and end on the last day of June in each year.

ARTICLE XII

ELECTIONS

Section 1. Election Date. The election of Directors and Officers of PWC shall be held at the Annual Meeting.

Section 2. Committees. The President shall appoint the members of the Committees at the regular Board Meeting.

Section 3. Nominations. Any Director may submit suggestions of names of candidates for nomination for election to the Board of Directors.

Section 4. Slate of Nominees. The President shall present the slate of nominees for the next Board of Directors to the Board upon approval.

Section 5. Ballot. The written ballot shall be prepared by the Secretary and submitted to the Board for approval, as to form, by a majority of a present quorum vote.

Section 6. Voting. All voting by the Directors for Directors and Officers shall be conducted by written ballot.

Section 7. Election. The election shall take place during the Annual Meeting and the votes shall be tallied and certified by the Secretary and reported to the Board prior to the end of the Annual Meeting.

Section 8. Majority Vote. Each nominee must receive at least a majority of the votes by Directors who constitute a present quorum in order to be elected on the Board as a Director or Officer.

Section 9. Highest Number of Votes. The nominee(s) with the highest number of votes shall be deemed elected, if there are more nominees than available positions on the Board, or there are several nominees for one Officer position.

Section 10. Tie Breaker. If there is a tie between two or more nominees for the last available Director position, or an Officer position, a run off vote will be conducted as to those nominees that are tied, not all remaining nominees. If the winner is later disqualified, the runner-up will be offered the vacant seat.

Section 11. Outgoing Directors. All outgoing Directors and Officers, whose term expired or who are not re-elected, shall be thanked for their service and informed that they are no longer authorized to act on behalf of PWC effective as of the seating of the new Directors and Officers at the Board Meeting. Outgoing Directors may be present but are not required to be present at the Board Meeting, unless they are presenting a report to the Board (i.e. Annual Report).

Section 12. New Board. The President shall announce the names of the incoming Directors and Officers at the Annual Meeting after the outgoing Board completes its regular business and after the certification of votes. The President shall seat the incoming Directors and Officers into office at the commencement of the Meeting of the Board of Directors. The term of Directors and Officers is from the Annual Board Meeting and for one year.

ARTICLE XIII

DISBURSEMENTS

Section 1. Board Approval. Disbursement of funds of the Petaluma Wrestling Club outside of the normal operating expenses of the club shall be made on motion and majority approval of the Board of Directors.

Section 2. Checks/EFT. All disbursements shall be made by check or electronic transfers.

Section 3. Check/Approval. Checks for over $1,000 shall be signed by the Treasurer any (1) one of the following officers: Club Director, President, Vice-President, Treasurer, or other Officer as authorized by a (2/3) two-thirds of a present quorum vote of the Board of Directors.

ARTICLE XIV

PARLIAMENTARY RULES & GOVERNING LAW

All meetings of the PWC shall be governed by and conducted according to the latest edition of Roberts Rules of Order, regarding Parliamentary rules and in accordance with the California Corporations code known as the Nonprofit Public Benefit Corporation Law, Corp. Code Sections 5110 et. seq.

ARTICLE XV

WAIVER OF NOTICE

Whenever any notice is required to be given under the provisions of the law of California or under the provisions of the Articles of Incorporation or the Bylaws of the PWC, a waiver thereof in writing signed by the person or persons entitled to such notice, whether before or after the time started therein, shall be deemed equivalent to the giving of such notice.

ARTICLE XVI

AMENDMENTS TO BYLAWS

The Bylaws may be altered, amended or repealed and new Bylaws may be adopted by (2/3) two-thirds of a present quorum vote of the Board of Directors present at any annual, regular or special meeting, if at least (15) fifteen days written notice is given of intention to alter, amend or repeal the Bylaws or to adopt new Bylaws, in whole or in part, at such meeting.